

|                                                                                                                                                                                  |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                      |  |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|------------------------------------------------------|--|
| <b>SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES</b>                                                                                               |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  | 1. REQUISITION NO.<br>740-26-4-2121-0046                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |  | PAGE 1 OF 58                                         |  |
| <b>OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, &amp; 30</b>                                                                                                                       |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  | 5. SOLICITATION NUMBER<br>36C25726Q0411                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |  | 6. SOLICITATION ISSUE DATE<br>05-08-2026             |  |
| 2. CONTRACT NO.                                                                                                                                                                  |  | 3. AWARD/EFFECTIVE DATE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  | 4. ORDER NO.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |  |                                                      |  |
| 7. FOR SOLICITATION INFORMATION CALL:                                                                                                                                            |  | a. NAME<br>Ognian D. Ivanov                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  | b. TELEPHONE NO. (No Collect Calls)<br>(210) 694-6302                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |  | 8. OFFER DUE DATE/LOCAL TIME<br>05-15-2026 10:00 CDT |  |
| 9. ISSUED BY<br>Department Of Veterans Affairs<br>Network Contracting Office 17<br><br>5441 Babcock Road Ste. 302<br>San Antonio TX 78240                                        |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  | 10. THIS ACQUISITION IS<br><input checked="" type="checkbox"/> UNRESTRICTED OR <input type="checkbox"/> SET ASIDE: _____ % FOR:<br><br><input type="checkbox"/> SMALL BUSINESS <input type="checkbox"/> WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM      NAICS: 325413<br><input type="checkbox"/> HUBZONE SMALL BUSINESS <input type="checkbox"/> EDWOSB      SIZE STANDARD: 1250 Employees<br><input type="checkbox"/> SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS <input type="checkbox"/> 8(A) |  |                                                      |  |
| 11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED<br><input type="checkbox"/> SEE SCHEDULE                                                                                 |  | 12. DISCOUNT TERMS                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |  | 13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)<br><input type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                                                                          |  | 13b. RATING<br>N/A                                   |  |
| 15. DELIVER TO<br>Department of Veterans Affairs<br>VA Texas Valley Coastal Bend HCS<br>Pathology and Laboratory (113)<br>2601 Veterans Blvd.<br>Harlingen TX 78550              |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  | 16. ADMINISTERED BY                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |                                                      |  |
| 17a. CONTRACTOR/OFFEROR                                                                                                                                                          |  | FACILITY CODE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |  | 18a. PAYMENT WILL BE MADE BY                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |  |                                                      |  |
| TELEPHONE NO.                                                                                                                                                                    |  | UEI:                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |  | EFT:                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |  |                                                      |  |
| 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER<br><input type="checkbox"/>                                                                                  |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  | 18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED<br><input type="checkbox"/> SEE ADDENDUM                                                                                                                                                                                                                                                                                                                                                                                                                        |  |                                                      |  |
| 19. ITEM NO.                                                                                                                                                                     |  | 20. SCHEDULE OF SUPPLIES/SERVICES<br>See CONTINUATION Page                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |  | 21. QUANTITY                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |  | 22. UNIT                                             |  |
|                                                                                                                                                                                  |  | 23. UNIT PRICE                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |  | 24. AMOUNT                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |  |                                                      |  |
|                                                                                                                                                                                  |  | This solicitation is for for a firm-fixed-price requirement for Non-Gyn Specimen Processing Lease Consumables in support of the Pathology and Laboratory Medicine Service at the VA Texas Valley Coastal Bend Health Care System, Harlingen, Texas.<br>Please see Statement of Work.<br><br>PERIOD OF PERFORMANCE:<br>Base Year: August 29, 2026 - August 28, 2027<br>Option 1 August 29, 2027 - August 28, 2028<br>Option 2 August 29, 2028 - August 28, 2029<br>Option 3 August 29, 2029 - August 28, 2030<br>Option 4 August 29, 2030 - August 28, 2031<br><br>(Use Reverse and/or Attach Additional Sheets as Necessary) |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                      |  |
| 25. ACCOUNTING AND APPROPRIATION DATA<br>See CONTINUATION Page                                                                                                                   |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  | 26. TOTAL AWARD AMOUNT (For Govt. Use Only)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  |                                                      |  |
| 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA<br><input type="checkbox"/>                                  |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  | 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA<br><input type="checkbox"/>                                                                                                                                                                                                                                                                                                                                                                                                               |  |                                                      |  |
| 27c. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA<br><input checked="" type="checkbox"/>                                    |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  | 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN _____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED                                                                                                                                                                                                                                                                                |  |                                                      |  |
| 29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____ YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN IS ACCEPTED AS TO ITEMS: |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |  |                                                      |  |
| 30a. SIGNATURE OF OFFEROR/CONTRACTOR                                                                                                                                             |  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |  | 31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |  |                                                      |  |
| 30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)                                                                                                                                    |  | 30c. DATE SIGNED                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |  | 31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT)<br>Ognian D. Ivanov<br>Contracting Officer                                                                                                                                                                                                                                                                                                                                                                                                                                                      |  | 31c. DATE SIGNED                                     |  |

## Table of Contents

|                                                                                                            |           |
|------------------------------------------------------------------------------------------------------------|-----------|
| <b>SECTION B - CONTINUATION OF SF 1449 BLOCKS .....</b>                                                    | <b>4</b>  |
| B.1 CONTRACT ADMINISTRATION DATA.....                                                                      | 4         |
| B.2 STATEMENT OF WORK.....                                                                                 | 5         |
| B.3 PRICE/COST SCHEDULE .....                                                                              | 7         |
| ITEM INFORMATION.....                                                                                      | 7         |
| B.4 DELIVERY SCHEDULE .....                                                                                | 17        |
| <b>SECTION C - CONTRACT CLAUSES .....</b>                                                                  | <b>18</b> |
| C.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998) .....                                            | 18        |
| C.2 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999).....                                                     | 18        |
| C.3 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000) ...                                      | 19        |
| C.5 52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (NOV 2025)<br>(DEVIATION) .....                         | 20        |
| C.6 52.240-93 BASIC SAFEGUARDING OF COVERED CONTRACTOR<br>INFORMATION SYSTEMS (DEVIATION) (NOV 2025).....  | 29        |
| C.7 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020).....                                              | 31        |
| C.8 VAAR 852.201-70 CONTRACTING OFFICER'S REPRESENTATIVE (DEC 2022)<br>.....                               | 31        |
| C.9 VAAR 852.203-70 COMMERCIAL ADVERTISING (MAY 2018).....                                                 | 32        |
| C.10 VAAR 852.204-71 INFORMATION AND INFORMATION SYSTEMS SECURITY<br>(FEB 2023).....                       | 32        |
| C.11 VAAR 852.204-72 PERSONNEL VETTING AND CREDENTIALING (DEVIATION)<br>(MAR 2026).....                    | 41        |
| C.12 VAAR 852.212-71 GRAY MARKET AND COUNTERFEIT ITEMS (FEB 2023) ...                                      | 44        |
| C.13 VAAR 852.232-72 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS<br>(NOV 2018).....                          | 44        |
| C.14 VAAR 852.239-70 SECURITY REQUIREMENTS FOR INFORMATION<br>TECHNOLOGY RESOURCES (FEB 2023).....         | 46        |
| C.15 VAAR 852.239-76 INFORMATION AND COMMUNICATION TECHNOLOGY<br>ACCESSIBILITY (FEB 2023).....             | 48        |
| C.16 VAAR 852.242-71 ADMINISTRATIVE CONTRACTING OFFICER (OCT 2020) .                                       | 49        |
| C.17 VAAR 852.246-71 REJECTED GOODS (OCT 2018) .....                                                       | 49        |
| <b>SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS.....</b>                                       | <b>50</b> |
| <b>SECTION E - SOLICITATION PROVISIONS.....</b>                                                            | <b>51</b> |
| E.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB<br>1998).....                          | 51        |
| E.2 ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL<br>PRODUCTS AND COMMERCIAL SERVICES ..... | 51        |
| E.3 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL<br>SERVICES (NOV 2021).....                     | 54        |
| E.4 52.225-2 BUY AMERICAN CERTIFICATE (OCT 2022).....                                                      | 57        |
| E.5 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020) .....                                          | 58        |
| E.6 VAAR 852.215-72 NOTICE OF INTENT TO RE-SOLICIT (OCT 2019) .....                                        | 58        |

|                                                                                                      |    |
|------------------------------------------------------------------------------------------------------|----|
| E.7 VAAR 852.252-70 SOLICITATION PROVISIONS OR CLAUSES INCORPORATED<br>BY REFERENCE (JAN 2008) ..... | 58 |
|------------------------------------------------------------------------------------------------------|----|

## SECTION B - CONTINUATION OF SF 1449 BLOCKS

### B.1 CONTRACT ADMINISTRATION DATA

1. Contract Administration: All contract administration matters will be handled by the following individuals:

a. CONTRACTOR:

b. GOVERNMENT: Contracting Officer 36C257 Ognian D. Ivanov

Department Of Veterans Affairs

Network Contracting Office 17

5441 Babcock Road Ste. 302

San Antonio TX 78240

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

☒ 52.232-33, Payment by Electronic Funds Transfer—System For Award Management, or

☐ 52.232-36, Payment by Third Party

3. INVOICES: Invoices shall be submitted in arrears:

a. Quarterly ☐

b. Semi-Annually ☐

c. Other ☒ Upon Performance

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.

<http://www.fsc.va.gov/einvoice.asp>

This is mandatory and the sole method for submitting invoices.

ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

| AMENDMENT NO | DATE |
|--------------|------|
|              |      |
|              |      |
|              |      |

## B.2 STATEMENT OF WORK

### VA Texas Valley Coastal Bend Health Care System Tissue Instrument, Reagents & Consumables

#### 1. GENERAL:

The Contractor shall provide and maintain one Non-Gyn Specimen Tissue Instrument Processor (if applicable), Reagents and Consumables to include preventive maintenance and emergency repairs for one base year and four option years in accordance with the requirements of this contract.

#### 2. PERIOD OF PERFORMANCE:

One Base year with the possibility of four one-year option periods:

- Base Year: August 29, 2026 – August 28, 2027
- 1<sup>st</sup> Option Period August 29, 2027 – August 28, 2028
- 2<sup>nd</sup> Option Period August 29, 2028 – August 28, 2029
- 3<sup>rd</sup> Option Period August 29, 2029 – August 28, 2030
- 4<sup>th</sup> Option Period August 29, 2030 – August 28, 2031.

#### 3. PLACE OF PERFORMANCE:

Department of Veterans Affairs Texas Valley Coastal Bend Health Care System (VATXVCBHCS), 2601 Veterans Blvd., Harlingen, Texas 78550. Pathology and Laboratory Medicine Service, 3<sup>rd</sup> Fl., 3G-101.

#### 4. DAYS AND HOURS OF OPERATION:

- a. Monday - Friday, 8 hours a day (8:00 am – 4:30 pm CST)

#### 5. VA OWNED EQUIPMENT:

- a. None

#### 6. PERFORMANCE REQUIREMENTS:

The Contractor shall provide equipment, if applicable and perform all annual and required service and/or repairs, provide non-gyn training for two pathologists and one Histopathology Technologist as needed, perform annual equipment

check/operation review with Histology/Cytology staff in the Histology HCC 3<sup>rd</sup> Fl, room 3G-119, at the Pathology & Laboratory Medicine Services, VATXVCBHCS.

**7. SPECIFICATIONS FOR REAGENTS/CONSUMMABLES:**

- a. All reagents and consumables will be available for purchase at the firm-fixed price cost per test established in the BPA.
- b. All reagents and consumables will be of high quality and meet standards to ensure optimal fixation and processing of specimens.

**8. SERVICE: All service cost to be incurred by vendor**

- a. The contractor will provide on-site service during standard business hours (Monday-Friday, 8 hours, 8:00 am – 4:30 pm CST).
- b. The Contractor shall respond to all emergency service calls within 48 hours.
- c. The Contractor shall provide a toll-free number for service calls and technical assistance during operating hours.
- d. The Contractor shall make all repairs as expeditiously as possible, so as not to compromise patient care.
- e. The Contractor shall run quality control material after all repairs and wait until all results are within range to verify a successful repair.
- f. The contractor shall provide annual preventive maintenance inspection (including necessary/updated software), testing and calibration on the T2 to ensure optimal working condition.
- g. The contractor shall maintain service repairs and provide a full report of any repairs to the Contracting Officer's Technical Representative (COTR).
- h. No hardware, containing any VA patient information is to be removed from the VA, without the approval and removal of data by the VA information technology department. Failure to comply with this VA requirement may result in prosecution.
- i. The contractor will provide a loaner T2 processor for any service or repair that would require the T2 to be out of service for more than one business day.

**9. CONTRACT PERFORMANCE MONITORING:**

The government reserves the right to monitor services and performance of instruments in accordance with the standards set forth by CLIA, the College of American Pathology and the Joint Commission. The Contracting Officer Technical Representative (COTR) is assigned to manage the contract. The COTR and/or an authorized representative will be the direct point of contact for the contractor. Only the COTR (or his/her authorized representative) has the authority to make requests of the vendor within the scope of the contract during the contract.

In exercising our right to continue/discontinue with the 4 option years, the contractor will be evaluated on its performance based on, but not limited to the following:

- a. Is contractor able to provide the requested consumables in a timely manner
- b. Are consumables of consistent high quality
- c. Are service calls (preventive and emergency) handled efficiently and competently

- d. Does the customer service/technical service hot line offer the necessary support to resolve immediate questions/problems
- e. Are technical specialists readily available to provide additional support/in-house training as needed.

#### 10. INVOICES:

Payment will be made upon receipt of a properly prepared detailed invoice, prepared by the Contractor, validated by the Contracting Officer's Technical Representative (COTR), and submitted to VA FSC, P. O. BOX 149971, Austin TX 78714 or faxed to the Austin Processing Center at 512-460-5540.

A properly prepared invoice will contain:

- a. Invoice Number and Date
- b. Contractor's Name and Address
- c. Accurate Purchase Order Number
- d. Supply or Service provided
- e. Total amount due

(End of SOW)

### B.3 PRICE/COST SCHEDULE

#### ITEM INFORMATION

| ITEM NUMBER | DESCRIPTION OF SUPPLIES/SERVICES                                                                                                                                                                                                                                                                         | QUANTITY | UNIT | UNIT PRICE | AMOUNT |
|-------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|------|------------|--------|
| 0001        | Filter, ThinPrep non-gyn 100 pk<br>Contract Period: Base<br>POP Begin: 08-29-2026<br>POP End: 08-28-2027<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets                      | 5.00     | EA   |            |        |
| 0002        | PRESERVCYT 32 OZ 4 PK<br>Contract Period: Base<br>POP Begin: 08-29-2026<br>POP End: 08-28-2027<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: 0234004 | 1.00     | EA   |            |        |
| 0003        |                                                                                                                                                                                                                                                                                                          | 5.00     | EA   |            |        |

|                                                                                                                                                                                                                                                                                                                        |      |    |  |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------|----|--|
| PRESERV CYT 100 PK VIAL (NON-GYN)<br>Contract Period: Base<br>POP Begin: 08-29-2026<br>POP End: 08-28-2027<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: ASY-14756 |      |    |  |
| <b>0004</b>                                                                                                                                                                                                                                                                                                            | 5.00 | EA |  |
| CYTOLYT, 32OZ 4 PK<br>Contract Period: Base<br>POP Begin: 08-29-2026<br>POP End: 08-28-2027<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: 0236004                  |      |    |  |
| <b>0005</b>                                                                                                                                                                                                                                                                                                            | 1.00 | EA |  |
| CYTOLYT TUBES, 50 PK<br>Contract Period: Base<br>POP Begin: 08-29-2026<br>POP End: 08-28-2027<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: ASY-15207              |      |    |  |
| <b>0006</b>                                                                                                                                                                                                                                                                                                            | 1.00 | EA |  |
| CYTOLYT TUBES, 80 PK<br>Contract Period: Base<br>POP Begin: 08-29-2026<br>POP End: 08-28-2027<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: ASY-15208              |      |    |  |
| <b>0007</b>                                                                                                                                                                                                                                                                                                            | 4.00 | EA |  |
| THINPREP MICROSCOPE SLIDES, NON-GYB 100PK<br>Contract Period: Base<br>POP Begin: 08-29-2026                                                                                                                                                                                                                            |      |    |  |



|                                                                                                                                                                                                                                                                                                                    |      |    |  |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------|----|--|
| POP End: 08-28-2027<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance<br>Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances,<br>Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: 70372-001                                                                              |      |    |  |
| <b>0008</b>                                                                                                                                                                                                                                                                                                        | 1.00 | EA |  |
| NON GYN SPECIMEN TISSUE PROCESSOR<br>Contract Period: Base<br>POP Begin: 08-29-2026<br>POP End: 08-28-2027<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance<br>Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances,<br>Reagents, Test Kits and Sets                        |      |    |  |
| <b>1001</b>                                                                                                                                                                                                                                                                                                        | 5.00 | EA |  |
| Filter, ThinPrep non-gyn 100 pk<br>Contract Period: Option 1<br>POP Begin: 08-29-2027<br>POP End: 08-28-2028<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance<br>Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances,<br>Reagents, Test Kits and Sets                      |      |    |  |
| <b>1002</b>                                                                                                                                                                                                                                                                                                        | 1.00 | EA |  |
| PRESERVCYT 32 OZ 4 PK<br>Contract Period: Option 1<br>POP Begin: 08-29-2027<br>POP End: 08-28-2028<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance<br>Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances,<br>Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: 0234004 |      |    |  |
| <b>1003</b>                                                                                                                                                                                                                                                                                                        | 5.00 | EA |  |
| PRESERVCYT 100 PK VIAL (NON-GYN)<br>Contract Period: Option 1<br>POP Begin: 08-29-2027<br>POP End: 08-28-2028<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance<br>Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances,<br>Reagents, Test Kits and Sets                     |      |    |  |

LOCAL STOCK NUMBER: ASY-14756

**1004**

5.00

EA

CYTOLYT, 32OZ 4 PK  
 Contract Period: Option 1  
 POP Begin: 08-29-2027  
 POP End: 08-28-2028  
 PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance  
 Manufacturing  
 PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances,  
 Reagents, Test Kits and Sets  
 LOCAL STOCK NUMBER: 0236004

**1005**

1.00

EA

CYTOLYT TUBES, 50 PK  
 Contract Period: Option 1  
 POP Begin: 08-29-2027  
 POP End: 08-28-2028  
 PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance  
 Manufacturing  
 PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances,  
 Reagents, Test Kits and Sets  
 LOCAL STOCK NUMBER: ASY-15207

**1006**

1.00

EA

CYTOLYT TUBES, 80 PK  
 Contract Period: Option 1  
 POP Begin: 08-29-2027  
 POP End: 08-28-2028  
 PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance  
 Manufacturing  
 PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances,  
 Reagents, Test Kits and Sets  
 LOCAL STOCK NUMBER: ASY-15208

**1007**

4.00

EA

THINPREP MICROSCOPE SLIDES, NON-GYB 100PK  
 Contract Period: Option 1  
 POP Begin: 08-29-2027  
 POP End: 08-28-2028  
 PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance  
 Manufacturing  
 PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances,  
 Reagents, Test Kits and Sets  
 LOCAL STOCK NUMBER: 70372-001

|                                                                                                                                                                                                                                                                                                                           |      |    |  |  |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------|----|--|--|
| <b>1008</b>                                                                                                                                                                                                                                                                                                               | 1.00 | EA |  |  |
| NON GYN SPECIMEN TISSUE PROCESSOR<br>Contract Period: Option 1<br>POP Begin: 08-29-2027<br>POP End: 08-28-2028<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets                                 |      |    |  |  |
| <b>2001</b>                                                                                                                                                                                                                                                                                                               | 5.00 | EA |  |  |
| Filter, ThinPrep non-gyn 100 pk<br>Contract Period: Option 2<br>POP Begin: 08-29-2028<br>POP End: 08-28-2029<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets                                   |      |    |  |  |
| <b>2002</b>                                                                                                                                                                                                                                                                                                               | 1.00 | EA |  |  |
| PRESERVCYT 32 OZ 4 PK<br>Contract Period: Option 2<br>POP Begin: 08-29-2028<br>POP End: 08-28-2029<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: 0234004              |      |    |  |  |
| <b>2003</b>                                                                                                                                                                                                                                                                                                               | 5.00 | EA |  |  |
| PRESERVCYT 100 PK VIAL (NON-GYN)<br>Contract Period: Option 2<br>POP Begin: 08-29-2028<br>POP End: 08-28-2029<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: ASY-14756 |      |    |  |  |
| <b>2004</b>                                                                                                                                                                                                                                                                                                               | 5.00 | EA |  |  |
| CYTOLYT, 32OZ 4 PK<br>Contract Period: Option 2<br>POP Begin: 08-29-2028                                                                                                                                                                                                                                                  |      |    |  |  |

|                                                                                                                                                                                                                                                                                                                                          |      |    |  |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------|----|--|
| POP End: 08-28-2029<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance<br>Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances,<br>Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: 0236004                                                                                                      |      |    |  |
| <b>2005</b>                                                                                                                                                                                                                                                                                                                              | 1.00 | EA |  |
| CYTOLYT TUBES, 50 PK<br>Contract Period: Option 2<br>POP Begin: 08-29-2028<br>POP End: 08-28-2029<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance<br>Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances,<br>Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: ASY-15207                      |      |    |  |
| <b>2006</b>                                                                                                                                                                                                                                                                                                                              | 1.00 | EA |  |
| CYTOLYT TUBES, 80 PK<br>Contract Period: Option 2<br>POP Begin: 08-29-2028<br>POP End: 08-28-2029<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance<br>Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances,<br>Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: ASY-15208                      |      |    |  |
| <b>2007</b>                                                                                                                                                                                                                                                                                                                              | 4.00 | EA |  |
| THINPREP MICROSCOPE SLIDES, NON-GYB 100PK<br>Contract Period: Option 2<br>POP Begin: 08-29-2028<br>POP End: 08-28-2029<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance<br>Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances,<br>Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: 70372-001 |      |    |  |
| <b>2008</b>                                                                                                                                                                                                                                                                                                                              | 1.00 | EA |  |
| NON GYN SPECIMEN TISSUE PROCESSOR<br>Contract Period: Option 2<br>POP Begin: 08-29-2028<br>POP End: 08-28-2029<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance<br>Manufacturing                                                                                                                                          |      |    |  |

|                                                                                                                                                                                                                                                                                                                           |      |    |  |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------|----|--|
| PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets                                                                                                                                                                                                                                 |      |    |  |
| <b>3001</b>                                                                                                                                                                                                                                                                                                               | 5.00 | EA |  |
| Filter, ThinPrep non-gyn 100 pk<br>Contract Period: Option 3<br>POP Begin: 08-29-2029<br>POP End: 08-28-2030<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets                                   |      |    |  |
| <b>3002</b>                                                                                                                                                                                                                                                                                                               | 1.00 | EA |  |
| PRESERVCYT 32 OZ 4 PK<br>Contract Period: Option 3<br>POP Begin: 08-29-2029<br>POP End: 08-28-2030<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: 0234004              |      |    |  |
| <b>3003</b>                                                                                                                                                                                                                                                                                                               | 5.00 | EA |  |
| PRESERVCYT 100 PK VIAL (NON-GYN)<br>Contract Period: Option 3<br>POP Begin: 08-29-2029<br>POP End: 08-28-2030<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: ASY-14756 |      |    |  |
| <b>3004</b>                                                                                                                                                                                                                                                                                                               | 5.00 | EA |  |
| CYTOLYT, 32OZ 4 PK<br>Contract Period: Option 3<br>POP Begin: 08-29-2029<br>POP End: 08-28-2030<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: 0236004                 |      |    |  |

|                                                                                                                                                                                                                                                                                                                                    |      |    |  |  |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------|----|--|--|
| <b>3005</b>                                                                                                                                                                                                                                                                                                                        | 1.00 | EA |  |  |
| CYTOLYT TUBES, 50 PK<br>Contract Period: Option 3<br>POP Begin: 08-29-2029<br>POP End: 08-28-2030<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: ASY-15207                      |      |    |  |  |
| <b>3006</b>                                                                                                                                                                                                                                                                                                                        | 1.00 | EA |  |  |
| CYTOLYT TUBES, 80 PK<br>Contract Period: Option 3<br>POP Begin: 08-29-2029<br>POP End: 08-28-2030<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: ASY-15208                      |      |    |  |  |
| <b>3007</b>                                                                                                                                                                                                                                                                                                                        | 4.00 | EA |  |  |
| THINPREP MICROSCOPE SLIDES, NON-GYB 100PK<br>Contract Period: Option 3<br>POP Begin: 08-29-2029<br>POP End: 08-28-2030<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: 70372-001 |      |    |  |  |
| <b>3008</b>                                                                                                                                                                                                                                                                                                                        | 1.00 | EA |  |  |
| NON GYN SPECIMEN TISSUE PROCESSOR<br>Contract Period: Option 3<br>POP Begin: 08-29-2029<br>POP End: 08-28-2030<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets                                          |      |    |  |  |
| <b>4001</b>                                                                                                                                                                                                                                                                                                                        | 5.00 | EA |  |  |
| Filter, ThinPrep non-gyn 100 pk<br>Contract Period: Option 4                                                                                                                                                                                                                                                                       |      |    |  |  |

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|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------|----|--|
| POP Begin: 08-29-2030<br>POP End: 08-28-2031<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets                                                                                                   |      |    |  |
| <b>4002</b>                                                                                                                                                                                                                                                                                                               | 1.00 | EA |  |
| PRESERVCYT 32 OZ 4 PK<br>Contract Period: Option 4<br>POP Begin: 08-29-2030<br>POP End: 08-28-2031<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: 0234004              |      |    |  |
| <b>4003</b>                                                                                                                                                                                                                                                                                                               | 5.00 | EA |  |
| PRESERVCYT 100 PK VIAL (NON-GYN)<br>Contract Period: Option 4<br>POP Begin: 08-29-2030<br>POP End: 08-28-2031<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: ASY-14756 |      |    |  |
| <b>4004</b>                                                                                                                                                                                                                                                                                                               | 5.00 | EA |  |
| CYTOLYT, 32OZ 4 PK<br>Contract Period: Option 4<br>POP Begin: 08-29-2030<br>POP End: 08-28-2031<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing<br>PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances, Reagents, Test Kits and Sets<br>LOCAL STOCK NUMBER: 0236004                 |      |    |  |
| <b>4005</b>                                                                                                                                                                                                                                                                                                               | 1.00 | EA |  |
| CYTOLYT TUBES, 50 PK<br>Contract Period: Option 4<br>POP Begin: 08-29-2030<br>POP End: 08-28-2031<br>PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance Manufacturing                                                                                                                                           |      |    |  |

PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances,  
Reagents, Test Kits and Sets  
LOCAL STOCK NUMBER: ASY-15207

**4006**

1.00

EA

CYTOLYT TUBES, 80 PK

Contract Period: Option 4

POP Begin: 08-29-2030

POP End: 08-28-2031

PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance  
Manufacturing

PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances,  
Reagents, Test Kits and Sets

LOCAL STOCK NUMBER: ASY-15208

**4007**

4.00

EA

THINPREP MICROSCOPE SLIDES, NON-GYB 100PK

Contract Period: Option 4

POP Begin: 08-29-2030

POP End: 08-28-2031

PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance  
Manufacturing

PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances,  
Reagents, Test Kits and Sets

LOCAL STOCK NUMBER: 70372-001

**4008**

1.00

EA

NON GYN SPECIMEN TISSUE PROCESSOR

Contract Period: Option 4

POP Begin: 08-29-2030

POP End: 08-28-2031

PRINCIPAL NAICS CODE: 325413 - In-Vitro Diagnostic Substance  
Manufacturing

PRODUCT/SERVICE CODE: 6550 - In Vitro Diagnostic Substances,  
Reagents, Test Kits and Sets

**GRAND TOTAL**



**B.4 DELIVERY SCHEDULE**

| ITEM<br>NUMBER        | SHIPPING INFORMATION                                                                                                                             | QUANTITY |
|-----------------------|--------------------------------------------------------------------------------------------------------------------------------------------------|----------|
| <b>0001-<br/>4008</b> | SHIP TO: Department of Veterans<br>Affairs<br>Valley Coastal Bend VA<br>Health Care Sys<br>2601 Veterans Drive<br>Harlingen, TX 78550 8942<br>US | ALL      |

## SECTION C - CONTRACT CLAUSES

### C.1 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>  
<https://www.va.gov/oal/library/vaar/>

(End of Clause)

| <b><u>FAR<br/>Number</u></b> | <b><u>Title</u></b>                                                                   | <b><u>Date</u></b> |
|------------------------------|---------------------------------------------------------------------------------------|--------------------|
| 52.203-17                    | CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS                                              | NOV 2023           |
| 52.203-19                    | PROHIBITION ON REQUIRING CERTAIN INTERNAL<br>CONFIDENTIALITY AGREEMENTS OR STATEMENTS | JAN 2017           |
| 52.204-13                    | SYSTEM FOR AWARD MANAGEMENT—MAINTENANCE<br>(DEVIATION)                                | NOV 2025           |
| 52.209-10                    | PROHIBITION ON CONTRACTING WITH INVERTED<br>DOMESTIC CORPORATIONS                     | NOV 2015           |
| 52.212-4                     | CONTRACT TERMS AND CONDITIONS—COMMERCIAL<br>PRODUCTS AND COMMERCIAL SERVICES          | NOV 2023           |
| 52.219-28                    | POSTAWARD SMALL BUSINESS PROGRAM<br>REREPRESENTATION (DEVIATION)                      | NOV 2025           |
| 52.222-19                    | CHILD LABOR—COOPERATION WITH AUTHORITIES<br>AND REMEDIES (DEVIATION)                  | MAR 2026           |
| 52.222-36                    | EQUAL OPPORTUNITY FOR WORKERS WITH<br>DISABILITIES (DEVIATION)                        | NOV 2025           |
| 52.222-37                    | EMPLOYMENT REPORTS ON VETERANS (DEVIATION)                                            | NOV 2025           |
| 52.222-50                    | COMBATING TRAFFICKING IN PERSONS (DEVIATION)                                          | NOV 2025           |
| 52.223-23                    | SUSTAINABLE PRODUCTS (DEVIATION)                                                      | NOV 2025           |
| 52.225-1                     | BUY AMERICAN—SUPPLIES (DEVIATION)                                                     | NOV 2025           |
| 52.226-8                     | ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT<br>MESSAGING WHILE DRIVING                | MAY 2024           |
| 52.232-33                    | PAYMENT BY ELECTRONIC FUNDS TRANSFER—<br>SYSTEM FOR AWARD MANAGEMENT                  | OCT 2018           |
| 52.232-40                    | PROVIDING ACCELERATED PAYMENTS TO SMALL<br>BUSINESS SUBCONTRACTORS                    | MAR 2023           |
| 52.233-3                     | PROTEST AFTER AWARD                                                                   | AUG 1996           |
| 52.233-4                     | APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM                                           | OCT 2004           |
| 52.244-<br>6DEV              | SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND<br>COMMERCIAL SERVICES                       | OCT 2025           |

### C.2 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6

months. The Contracting Officer may exercise the option by written notice to the Contractor within 30 days.

(End of Clause)

### **C.3 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)**

(a) The Government may extend the term of this contract by written notice to the Contractor within 30 days, provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed three (5) years.

(End of Clause)

### **C.4 52.222-90 ADDRESSING DEI DISCRIMINATION BY FEDERAL CONTRACTORS (APR 2026)**

(a) *Definitions.* As used in this clause—

*Program participation* means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

*Racially discriminatory diversity, equity, and inclusion (DEI) activities* means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (e.g., vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

- (1) The Contractor will not engage in any racially discriminatory DEI activities;
- (2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;
- (3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;

(4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and

(5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.

(6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).

(c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.

(End of clause)

## **C.5 52.240-91 SECURITY PROHIBITIONS AND EXCLUSIONS (NOV 2025) (DEVIATION)**

(a) *Definitions.* As used in this clause—

*American Security Drone Act-covered foreign entity* means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at <https://www.sam.gov> (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

*Backhaul* means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

*Covered application* means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

*Covered article*, as defined in 41 U.S.C. 4713(k), means:

(1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;

(2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);

(3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or

(4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

*Covered foreign country* means The People's Republic of China.

*Covered telecommunications equipment or services* means—

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

*Critical technology* means—

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

*FASC-prohibited unmanned aircraft system* means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

*FASCSA order* means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

*Information technology*, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

*Intelligence community*, as defined by 50 U.S.C. 3003(4), means the following—

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;

(3) The National Security Agency;

(4) The Defense Intelligence Agency;

(5) The National Geospatial-Intelligence Agency;

(6) The National Reconnaissance Office;

(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;

(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;

(9) The Bureau of Intelligence and Research of the Department of State;

(10) The Office of Intelligence and Analysis of the Department of the Treasury;

(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or

(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

*Interconnection arrangement* means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

*Kaspersky Lab-covered article* means any hardware, software, or service that—

(1) Is developed or provided by a Kaspersky Lab-covered entity;

(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or

(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

*Kaspersky Lab-covered entity* means—

(1) Kaspersky Lab;

(2) Any successor entity to Kaspersky Lab, including any change in name, e.g., "Kaspersky";

(3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or

(4) Any entity of which Kaspersky Lab has a majority ownership.

*National security system*, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—

(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or

(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

*Roaming* means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

*Sensitive compartmented information* means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

*Sensitive compartmented information system* means a national security system authorized to process or store sensitive compartmented information.

*Source* means a non-Federal supplier, or potential supplier, of products or services, at any tier.

*Subsidiary* means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

*Substantial or essential component* means any component necessary for the proper function or performance of a piece of equipment, system, or service.

*Unmanned aircraft* means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

*Unmanned aircraft system* means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract.* Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));



(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures.* The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers.* The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract.*

(1) *Certain telecommunications and video surveillance equipment, systems, or services.*

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

*(2) Office of Foreign Assets Control Restrictions.*

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at <https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists>.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at <https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information>.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at <https://www.trade.gov/consolidated-screening-list>, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

*(3) Sudan prohibition.* The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

*(4) Iran prohibitions.*

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over \$15,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

*(e) Governmentwide exclusion and removal orders.*

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at <https://www.sam.gov> to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) *Reasonable inquiry.* The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services.* For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

*(h) General report.*

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at <https://dibnet.dod.mil>.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report.*

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

- (i) Contract number and order number, if applicable;
- (ii) Name of the covered article or source subject to a FASCSA order;
- (iii) The specific FASCSA order the product or service does not comply with;
- (iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of Provision)

## **C.6 52.240-93 BASIC SAFEGUARDING OF COVERED CONTRACTOR INFORMATION SYSTEMS (DEVIATION) (NOV 2025)**

(a) Definitions. As used in this clause—

*Covered contractor information system* means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

*Federal contract information—*

(1) Means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government; but

(2) Does not include information provided by the Government to the public (such as on public websites) or simple transactional information (such as information necessary to process payments).

*Information* means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

*Information system* means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).

*Safeguarding* means measures or controls that are prescribed to protect information systems.

*(b) Safeguarding requirements.*

(1) Basic requirements. The Contractor shall safeguard its covered contractor information systems by implementing, at minimum, the following security controls:

(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).

(ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.

(iii) Verify and control/limit connections to and use of external information systems.

(iv) Control information posted or processed on publicly accessible information systems.

(v) Identify information system users, processes acting on behalf of users, or devices.

(vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.

(vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.

(viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.

(ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.

(x) Monitor, control, and protect organizational communications (i.e., information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.

(xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.

(xii) Identify, report, and correct information and information system flaws in a timely manner.

(xiii) Provide protection from malicious code at appropriate locations within organizational information systems.

(xiv) Update malicious code protection mechanisms when new releases are available.

(xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) Other requirements. This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal departments and agencies relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

(c) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products, other than commercially available off-the-shelf items, or commercial services), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

(End of Provision)

## **C.7 52.252-6 AUTHORIZED DEVIATIONS IN CLAUSES (NOV 2020)**

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any VAAR (48 CFR Chapter FEDERAL ACQUISITION REGULATION (48 CFR Chapter 1)) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of Clause)

## **C.8 VAAR 852.201-70 CONTRACTING OFFICER'S REPRESENTATIVE (DEC 2022)**

The Contracting Officer reserves the right to designate representatives to act for him/her in furnishing technical guidance and advice or generally monitor the work to be performed under this contract. Such designation will be in writing and will define the scope and limitation of the designee's authority. A copy of the designation letter shall be furnished to the Contractor.

(End of Clause)

## C.9 VAAR 852.203-70 COMMERCIAL ADVERTISING (MAY 2018)

The Contractor shall not make reference in its commercial advertising to Department of Veterans Affairs contracts in a manner that states or implies the Department of Veterans Affairs approves or endorses the Contractor's products or services or considers the Contractor's products or services superior to other products or services.

(End of Clause)

## C.10 VAAR 852.204-71 INFORMATION AND INFORMATION SYSTEMS SECURITY (FEB 2023)

(a) *Definitions.* As used in this clause—*Business Associate* means an entity, including an individual (other than a member of the workforce of a covered entity), company, organization or another covered entity, as defined by the Health Insurance Portability and Accountability Act of 1996 (HIPAA) Privacy Rule, that performs or assists in the performance of a function or activity on behalf of the Veterans Health Administration (VHA) that involves the creating, receiving, maintaining, transmitting of, or having access to, protected health information (PHI). The term also includes a subcontractor of a business associate that creates, receives, maintains, or transmits PHI on behalf of the business associate.

*Business Associate Agreement (BAA)* means the agreement, as dictated by the Privacy Rule, between VHA and a business associate, which must be entered into in addition to the underlying contract for services and before any release of PHI can be made to the business associate, in order for the business associate to perform certain functions or activities on behalf of VHA.

*Information system* means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information whether automated or manual.

*Information technology* (see FAR 2.101) also means Information and Communication Technology (ICT).

*Information technology-related contracts* means those contracts which include services (including support services), and related resources for information technology as defined in 802.101.

*Privacy officer* means the VA official with responsibility for implementing and oversight of privacy related policies and practices that impact a given VA acquisition.

*Sensitive personal information* means, with respect to an individual, any information about the individual maintained by VA, including but not limited to the following:

(1) Education, financial transactions, medical history, and criminal or employment history.

(2) Information that can be used to distinguish or trace the individual's identity, including but not limited to name, social security number, date and place of birth, mother's maiden name, or biometric records.



*Security plan* means a formal document that provides an overview of the security requirements for an information system or an information security program and describes the security controls in place or planned for meeting those requirements.

*VA Information Security Rules of Behavior for Organizational Users (VA National Rules of Behavior)* means a set of VA rules that describes the responsibilities and expected behavior of users of VA information or information systems.

*VA sensitive information* means all VA data, on any storage media or in any form or format, which requires protection due to the risk of harm that could result from inadvertent or deliberate disclosure, alteration, or destruction of the information and includes sensitive personal information. The term includes information where improper use or disclosure could adversely affect the ability of VA to accomplish its mission, proprietary information, records about individuals requiring protection under various confidentiality provisions such as the Privacy Act and the HIPAA Privacy Rule, and information that can be withheld under the Freedom of Information Act. Examples of VA sensitive information include the following:

individually-identifiable medical, benefits, and personnel information; financial, budgetary, research, quality assurance, confidential commercial, critical infrastructure, investigatory, and law enforcement information; information that is confidential and privileged in litigation such as information protected by the deliberative process privilege, attorney work-product privilege, and the attorney-client privilege; and other information which, if released, could result in violation of law or harm or unfairness to any individual or group, or could adversely affect the national interest or the conduct of Federal programs.

(b) *General.* Contractors, subcontractors, their employees, third-parties, and business associates with access to VA information, information systems, or information technology (IT) or providing and accessing IT-related goods and services, shall adhere to VA Directive 6500, VA Cybersecurity Program, and the directives and handbooks in the VA 6500 series related to VA information (including VA sensitive information and sensitive personal information and information systems security and privacy), as well as those set forth in the contract specifications, statement of work, or performance work statement. These include, but are not limited to, VA Handbook 6500.6, Contract Security; and VA Directive and Handbook 0710, *Personnel Security and Suitability Program*, which establishes VA's procedures, responsibilities, and processes for complying with current Federal law, Executive Orders, policies, regulations, standards and guidance for protecting VA information, information systems (see 802.101, Definitions) security and privacy, and adhering to personnel security requirements when accessing VA information or information systems.

(c) *Access to VA information and VA information systems.*

(1) Contractors are limited in their request for logical or physical access to VA information or VA information systems for their employees, subcontractors, third parties and business associates to the extent necessary to perform the services or provide the goods as specified in the contracts, agreements, task, delivery or purchase orders.

(2) All Contractors, subcontractors, third parties, and business associates working with VA information are subject to the same investigative requirements as those of VA appointees or employees who have access to the same types of information. The level and process of

background security investigations for contractors to access VA information and VA information systems shall be in accordance with VA Directive and Handbook 0710, *Personnel Security and Suitability Program*.

(3) Contractors, subcontractors, third parties, and business associates who require access to national security programs must have a valid security clearance.

(4) HIPAA Business Associate Agreement requirement. Contractors shall enter into a Business Associate Agreement (BAA) with VHA, VA's Covered Entity, when contract requirements and access to protected health information is required and when requested by the Contracting Officer, or the Contracting Officer's Representative (COR) (see VAAR 824.103–70). Under the HIPAA Privacy and Security Rules, a Covered Entity (VHA) must have a satisfactory assurance that its PHI will be safeguarded from misuse. To do so, a Covered Entity enters into a BAA with a contractor (now the business associate), which obligates the business associate to only use the Covered Entity's PHI for the purposes for which it was engaged, provide the same protections and safeguards as is required from the Covered Entity, and agree to the same disclosure restrictions to PHI that is required of the Covered Entity in situations where a contractor—

(i) Creates, receives, maintains, or transmits VHA PHI or that will store, generate, access, exchange, process, or utilize such PHI in order to perform certain health care operations activities or functions on behalf of the Covered Entity; or

(ii) Provides one or more of the services specified in the Privacy Rule to or for the Covered Entity.

(A) *Contractors or entities required to execute BAAs for contracts and other agreements become VHA business associates.* BAAs are issued by VHA or may be issued by other VA programs in support of VHA. The HIPAA Privacy Rule requires VHA to execute compliant BAAs with persons or entities that create, receive, maintain, or transmit VHA PHI or that will store, generate, access, exchange, process, or utilize such PHI in order to perform certain activities, functions or services to, for, or on behalf of VHA. There may be other VA components or staff offices which also provide certain services and support to VHA and must receive PHI in order to do so. If these components award contracts or enter into other agreements, purchase/delivery orders, modifications and issue governmentwide purchase card transactions to help in the delivery of these services to VHA, they will also fall within the requirement to obtain a satisfactory assurance from these contractors by executing a BAA.

(B) *BAA requirement flow down to subcontractors.* A prime Contractor required to execute a BAA shall also obtain a satisfactory assurance, in the form of a BAA, that any of its subcontractors who will also create, receive, maintain, or transmit VHA PHI or that will store, generate, access, exchange, process, or utilize such PHI will comply with HIPAA requirements to the same degree as the Contractor. Contractors employing a subcontractor who creates, receives, maintains, or transmits VHA PHI or that will store, generate, access, exchange, process, or utilize such VHA PHI under a contract or agreement is required to execute a BAA with each of its subcontractors which also obligates the subcontractor (*i.e.*, also a business associate) to provide the same protections and safeguards and agree to the same disclosure restrictions to VHA's PHI that is required of the Covered Entity and the prime Contractor.

(d) *Contractor operations required to be in United States.* Custom software development and outsourced operations must be located in the U.S. to the maximum extent practicable. If such services are proposed to be performed outside the continental United States, and are not otherwise disallowed by other Federal law, regulations or policy, or other VA policy or other mandates as stated in the contract, specifications, statement of work or performance work statement (including applicable Business Associate Agreements), the Contractor/subcontractor must state in its proposal where all non-U.S. services are provided. At a minimum, the Contractor/ subcontractor must include a detailed Information Technology Security Plan, for review and approval by the Contracting Officer, specifically to address mitigation of the resulting problems of communication, control, and data protection.

(e) *Contractor/subcontractor employee reassignment and termination notification.* Contractors and subcontractors shall provide written notification to the Contracting Officer and Contracting Officer's Representative (COR) immediately, and not later than four (4) hours, when an employee working on a VA information system or with access to VA information is reassigned or leaves the Contractor or subcontractor's employment on the cognizant VA contract. The Contracting Officer and COR must also be notified immediately by the Contractor or subcontractor prior to an unfriendly termination.

(f) *VA information custodial requirements.*

(1) *Release, publication, and use of data.* Information made available to a Contractor or subcontractor by VA for the performance or administration of a contract or information developed by the Contractor/subcontractor in performance or administration of a contract shall be used only for the stated contract purpose and shall not be used in any other way without VA's prior written approval. This clause expressly limits the Contractor's/ subcontractor's rights to use data as described in Rights in Data—General, FAR 52.227–14(d).

(2) *Media sanitization.* VA information shall not be co-mingled with any other data on the Contractors/subcontractor's information systems or media storage systems in order to ensure federal and VA requirements related to data protection, information segregation, classification requirements, and media sanitization can be met (see VA Directive 6500, VA Cybersecurity Program). VA reserves the right to conduct scheduled or unscheduled on-site inspections, assessments, or audits of Contractor and subcontractor IT resources, information systems and assets to ensure data security and privacy controls, separation of data and job duties, and destruction/media sanitization procedures are in compliance with Federal and VA requirements. The Contractor and subcontractor will provide all necessary access and support to VA and/or GAO staff during periodic control assessments or audits.

(3) *Data retention, destruction, and contractor self-certification.* The Contractor and its subcontractors are responsible for collecting and destroying any VA data provided, created, or stored under the terms of this contract, to a point where VA data or materials are no longer readable or reconstructable to any degree, in accordance with VA Directive 6371, Destruction of Temporary Paper Records, or subsequent issue. Prior to termination or completion of this contract, the Contractor/subcontractor must provide its plan for destruction of all VA data in its possession according to VA Handbook 6500, and VA Cybersecurity Program, including compliance with National Institute of Standards and Technology (NIST) 800–88, Guidelines for Media Sanitization, for the purposes of media sanitization on all IT equipment. The Contractor

must certify in writing to the Contracting Officer within 30 days of termination of the contract that the data destruction requirements in this paragraph have been met.

(4) *Return of VA data and information.* When information, data, documentary material, records and/or equipment is no longer required, it shall be returned to the VA (as stipulated by the Contracting Officer or the COR) or the Contractor/subcontractor must hold it until otherwise directed. Items returned will be hand carried, securely mailed, emailed, or securely electronically transmitted to the Contracting Officer or to the address as provided in the contract or by the assigned COR, and/or accompanying BAA. Depending on the method of return, Contractor/subcontractor must store, transport, or transmit VA sensitive information, when permitted by the contract using VA-approved encryption tools that are, at a minimum, validated under Federal Information Processing Standards (FIPS) 140–3 (or its successor). If mailed, Contractor/subcontractor must send via a trackable method (USPS, UPS, Federal Express, etc.) and immediately provide the Contracting Officer with the tracking information. No information, data, documentary material, records or equipment will be destroyed unless done in accordance with the terms of this contract and the VHA Records Control Schedule 10–1.

(5) *Use of VA data and information.* The Contractor/subcontractor must receive, gather, store, back up, maintain, use, disclose and dispose of VA information only in compliance with the terms of the contract and applicable Federal and VA information confidentiality and security laws, regulations and policies. If Federal or VA information confidentiality and security laws, regulations and policies become applicable to the VA information or information systems after execution of the contract, or if the National NIST issues or updates applicable FIPS or Special Publications (SP) after execution of this contract, the parties agree to negotiate in good faith to implement the information confidentiality and security laws, regulations and policies for this contract as a result of any updates, if required.

(6) *Copying VA data or information.* The Contractor/subcontractor shall not make copies of VA information except as authorized and necessary to perform the terms of the contract or to preserve electronic information stored on Contractor/ subcontractor electronic storage media for restoration in case any electronic equipment or data used by the Contractor/subcontractor needs to be restored to an operating state. If copies are made for restoration purposes, after the restoration is complete, the copies must be appropriately destroyed.

(7) *Violation of information custodial requirements.* If VA determines that the Contractor has violated any of VA's information confidentiality, privacy, or security provisions, it shall be sufficient grounds for VA to withhold payment to the Contractor or third-party or terminate the contract for default in accordance with FAR part 49 or terminate for cause in accordance with FAR 12.403.

(8) *Encryption.* The Contractor/ subcontractor must store, transport, or transmit VA sensitive information, when permitted by the contract, using cryptography, and VA-approved encryption tools that are, at a minimum, validated under FIPS 140–3 (or its successor).

(9) *Firewall and web services security controls.* The Contractor/subcontractor's firewall and web services security controls, if applicable, shall meet or exceed VA's minimum requirements. VA Configuration Guidelines are available upon request.

(10) *Disclosure of VA data and information.* Except for uses and disclosures of VA information authorized in a cognizant contract for performance of the contract, the Contractor/subcontractor may use and disclose VA information only in two other situations:

(i) subject to paragraph (f)(10) of this section, in response to a court order from a court of competent jurisdiction, or

(ii) with VA's prior written approval. The Contractor/ subcontractor must refer all requests for, demands for production of, or inquiries about, VA information and information systems to the Contracting Officer for response. If the Contractor/subcontractor is in receipt of a court order or other request or believes it has a legal requirement to disclose VA information, that Contractor/ subcontractor shall immediately refer such court order or other request to the Contracting Officer for response. If the Contractor or subcontractor discloses information on behalf of VHA, the Contractor and/or subcontractor must maintain an accounting of disclosures. Accounting of Disclosures documentation maintained by the Contractor/subcontractor will include the name of the individual to whom the information pertains, the date of each disclosure, the nature or description of the information disclosed, a brief statement of the purpose of each disclosure or, in lieu of such statement, a copy of a written request for a disclosure, and the name and address of the person or agency to whom the disclosure was made. The Contractor/ subcontractor will provide its Accounting of Disclosures upon request and within 15 calendar days to the assigned COR and Privacy Officer. Accounting of disclosures should be provided electronically via encrypted email to the COR and designated VA facility Privacy Officer as provided in the contract, BAA, or by the Contracting Officer. If providing the Accounting of Disclosures electronically cannot be done securely, the Contractor/subcontractor will provide copies via trackable methods (UPS, USPS, Federal Express, etc.) immediately, providing the designated COR and Privacy Officer with the tracking information.

(11) *Compliance with privacy statutes and applicable regulations.* The Contractor/ subcontractor shall not disclose VA information protected by any of VA's privacy statutes or applicable regulations including but not limited to: the Privacy Act of 1974, 38 U.S.C. 5701, confidential nature of claims, 38 U.S.C. 5705, confidentiality of medical quality assurance records and/or 38 U.S.C. 7332, confidentiality of certain health records pertaining to drug addiction, sickle cell anemia, alcoholism or alcohol abuse, or infection with human immunodeficiency virus or the HIPAA Privacy Rule. If the Contractor/subcontractor is in receipt of a court order or other requests for VA information or has questions if it can disclose information protected under the abovementioned confidentiality statutes because it is required by law, that Contractor/subcontractor shall immediately refer such court order or other request to the Contracting Officer for response.

(g) *Report of known or suspected security/ privacy incident.* The Contractor, subcontractor, third-party affiliate or business associate, and its employees shall notify VA immediately via the Contracting Officer and the COR or within one (1) hour of an incident which is an occurrence (including the discovery or disclosure of successful exploits of system vulnerability) that

(A) actually or imminently jeopardizes, without lawful authority, the integrity, confidentiality, or the availability of its data and operations, or of its information or information system(s); or

(B) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies. The initial notification may first be made verbally but

must be followed up in writing within one (1) hour. See VA Data Breach Response Service at [https://www.oprm.va.gov/dbrs/about\\_dbrs.aspx](https://www.oprm.va.gov/dbrs/about_dbrs.aspx). Report all actual or suspected security/privacy incidents and report the information to the Contracting Officer and the COR as identified in the contract or as directed in the contract, within one hour of discovery or suspicion.

(1) Such issues shall be remediated as quickly as is practical, but in no event longer than [] days. The Contractor shall notify the Contracting Officer in writing.

(2) When the security fixes involve installing third party patched (e.g., Microsoft OS patches or Adobe Acrobat), the Contractor will provide written notice to VA that the patch has been validated as not affecting the systems within 10 working days. When the Contractor is responsible for operations or maintenance of the systems, they shall apply the security fixes within [].

(3) All other vulnerabilities shall be remediated in a timely manner based on risk, but within 60 days of discovery or disclosure. Contractors shall notify the Contracting Officer, and COR within 2 business days after remediation of the identified vulnerability. Exceptions to this paragraph (e.g., for the convenience of VA) must be requested by the Contractor through the COR and shall only be granted with approval of the Contracting Officer and the VA Assistant Secretary for Office of Information and Technology. These exceptions will be tracked by the Contractor in concert with the Government in accordance with VA Directive 6500.6 and related VA Handbooks.

*(h) Security and privacy incident investigation.*

(1) The term “privacy incident” means the unauthorized disclosure or use of VA information protected under a confidentiality statute or regulation.

(2) The term “security incident” means an occurrence that

(A) actually or imminently jeopardizes, without lawful authority, the integrity, confidentiality, or availability of information systems; or

(B) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable policies. The Contractor/subcontractor shall immediately notify the Contracting Officer and COR for the contract of any known or suspected security or privacy incident, or any other unauthorized disclosure of sensitive information, including that contained in system(s) to which the Contractor/subcontractor has access.

(3) To the extent known by the Contractor/ subcontractor, the Contractor/subcontractor’s notice to VA shall identify the information involved, the circumstances surrounding the incident (including to whom, how, when, and where the VA information or assets were placed at risk or compromised), and any other information that the Contractor/subcontractor considers relevant.

(4) With respect to unsecured PHI, the Business Associate is deemed to have discovered a security incident as defined above when the Business Associate either knew, or by exercising reasonable diligence should have been known to an employee of the Business Associate. Upon discovery, the Business Associate must notify VHA of the security incident immediately within one hour of discovery or suspicion as agreed to in the BAA.

(5) In instances of theft or break-in or other criminal activity, the Contractor/subcontractor must concurrently report the incident to the appropriate law enforcement entity (or entities) of jurisdiction, including the VA OIG and the VA Office of Security and Law Enforcement. The Contractor, its employees, and its subcontractors and their employees shall cooperate with VA and any law enforcement authority responsible for the investigation and prosecution of any possible criminal law violation(s) associated with any incident. The Contractor/subcontractor shall cooperate with VA in any civil litigation to recover VA information, obtain monetary or other compensation from a third party for damages arising from any incident, or obtain injunctive relief against any third party arising from, or related to, the incident.

(i) *Data breach notification requirements.*

(1) This contract may require access to sensitive personal information. If so, the Contractor is liable to VA for liquidated damages in the event of a data breach involving any VA sensitive personal information the Contractor/Subcontractor processes or maintains under the contract as set forth in clause 852.211–76, Liquidated Damages—Reimbursement for Data Breach Costs.

(2) The Contractor/subcontractor shall provide notice to VA of a privacy or security incident as set forth in the Security and Privacy Incident Investigation section of this clause. The term 'data breach' means the loss, theft, or other unauthorized access, or any access other than that incidental to the scope of employment, to data containing sensitive personal information, in electronic or printed form, that results in the potential compromise of the confidentiality or integrity of the data. The Contractor shall fully cooperate with VA or third-party entity performing an independent risk analysis on behalf of VA. Failure to cooperate may be deemed a material breach and grounds for contract termination.

(3) The Contractor/subcontractor shall fully cooperate with VA or any Government agency conducting an analysis regarding any notice of a data breach or potential data breach or security incident which may require the Contractor to provide information to the Government or third-party performing a risk analysis for VA, and shall address all relevant information concerning the data breach, including the following:

(i) Nature of the event (loss, theft, unauthorized access).

(ii) Description of the event, including—

(A) Date of occurrence;

(B) Date of incident detection;

(C) Data elements involved, including any PII, such as full name, social security number, date of birth, home address, account number, disability code.

(D) Number of individuals affected or potentially affected.

(E) Names of individuals or groups affected or potentially affected.

(F) Ease of logical data access to the lost, stolen or improperly accessed data in light of the degree of protection for the data, e.g., unencrypted, plain text.

(G) Amount of time the data has been out of VA control.

(H) The likelihood that the sensitive personal information will or has been compromised (made accessible to and usable by unauthorized persons).

(I) Known misuses of data containing sensitive personal information, if any.

(J) Assessment of the potential harm to the affected individuals.

(K) Data breach analysis as outlined in 6500.2 Handbook, Management of Breaches Involving Sensitive Personal Information, as appropriate.

(L) Whether credit protection services may assist record subjects in avoiding or mitigating the results of identity theft based on the sensitive personal information that may have been compromised.

(M) Steps taken in response to mitigate or prevent a repetition of the incident.

(j) *Training.*

(1) All Contractor employees and subcontractor employees requiring access to VA information or VA information systems shall complete the following before being granted access to VA information and its systems:

(i) On an annual basis, successfully complete the VA Privacy and Information Security Awareness and VA Information Security Rules of Behavior training.

(ii) On an annual basis, sign and acknowledge (either manually or electronically) understanding of and responsibilities for compliance with the VA Information Security Rules of Behavior for Organizational Users, relating to access to VA information and information systems.

(iii) Successfully complete any additional cyber security or privacy training, as required for VA personnel with equivalent information system access.

(2) The Contractor shall provide to the Contracting Officer and/or the COR a copy of the training certificates and affirmation that VA Information Security Rules of Behavior for Organizational Users signed by each applicable employee have been completed and submitted within five (5) days of the initiation of the contract and annually thereafter, as required.

(3) Failure to complete the mandatory annual training and acknowledgement of the VA Information Security Rules of Behavior, within the timeframe required, is grounds for suspension or termination of all physical or electronic access privileges and removal from work on the contract until such time as the training and documents are complete.

(k) *Subcontract flow down.* The Contractor shall include the substance of this clause, including this paragraph (k), in subcontracts, third-party agreements, and BAAs, of any amount and in which subcontractor employees, third-party servicers/employees, and business associates will perform functions where they will have access to VA information (including VA sensitive information, *i.e.*, sensitive personal information and protected health information), information systems, information technology (IT) or providing and accessing information technology-related contract services, support services, and related resources (see VAAR 802.101 definition of information technology-related contracts).



(End of Clause)

## C.11 VAAR 852.204-72 PERSONNEL VETTING AND CREDENTIALING (DEVIATION) (MAR 2026)

(a) Definitions. As used in this clause –

*VA Information system* is the same as information system and means, pursuant to 38 U.S.C. 5727, a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information whether automated or manual.

*VA sensitive information* means all VA data, on any storage media or in any form or format, which requires protection due to the risk of harm that could result from inadvertent or deliberate disclosure, alteration, or destruction of the information and includes sensitive personal information. The term includes information where improper use or disclosure could adversely affect the ability of VA to accomplish its mission, proprietary information, records about individuals requiring protection under various confidentiality provisions such as the Privacy Act and the HIPAA Privacy Rule, and information that can be withheld under the Freedom of Information Act. Examples of VA sensitive information include the following: individually-identifiable medical, benefits, and personnel information; financial, budgetary, research, quality assurance, confidential commercial, critical infrastructure, investigatory, and law enforcement information; information that is confidential and privileged in litigation such as information protected by the deliberative process privilege, attorney work-product privilege, and the attorney client privilege; and other information which, if released, could result in violation of law or harm or unfairness to any individual or group, or could adversely affect the national interest or the conduct of Federal programs.

(b) *General*. Contractor personnel assigned to work for or on behalf of VA must undergo a background investigation commensurate with the risk and sensitivity level designation associated with the work to be performed at the level indicated in the contract. The Contractor and subcontractors shall comply with VA Directive/Handbook 0710, Personnel Security and Suitability Program, which can be accessed at: <https://vaww.va.gov/vapubs/index.cfm>.

(c) *Risk and Sensitivity Levels*. The following table identifies the risk and sensitivity levels that apply to any personnel providing services under this contract. \*VA Administrations, organizations and staff offices will use the OPM [Position Designation Tool](#).

| Positions/Tasks Designated as Non-Sensitive Positions – Tier 1/Low Risk |
|-------------------------------------------------------------------------|
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| <b>Positions/Tasks Designated as Non-Sensitive Positions – Tier 2/Mod Risk</b>  |
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| <b>Positions/Tasks Designated as Non-Sensitive Positions – Tier 4/High Risk</b> |
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Security clearances are granted to individuals with a specific requirement for access to classified material (for example, Confidential, Secret and Top Secret). Contractor personnel that are required to obtain a security clearance will be subject to a Tier 3 or Tier 5 investigation. The following sensitivity designations have been assigned for the identified Tier 3 and Tier 5 required by this contract:

Tier 3:

Tier 5:

(d) *Fitness*. The results from a background investigation are used to determine if an individual's fitness is sufficient for that individual to perform work for or on behalf of VA in the position identified in this contract. Contractor fitness determinations are made in accordance with 5 CFR Part 731.202.

Fitness requirements for employment are separate and distinct from job qualifications. If a Contractor or subcontractor employee is found to be unsuitable or unfit to provide services under this contract, the Contractor shall immediately remove the employee from working on this contract and take those necessary steps that restrict the employee's logical access to VA data, information, VA sensitive information, or information technology or VA information systems containing such data or information.

The Contractor shall advise the employee that they are not permitted to access any VA controlled building or real property in relation to this contract. The removal of an unfit Contractor or subcontractor employee does not alleviate the Contractor from satisfying the requirements of this contract. The Government will not reimburse the Contractor for any costs associated with the recruitment/replacement of an employee or subcontractor employee who is found to be unfit.

(e) *Identification Cards.* The Government will provide a Personal Identification Verification (PIV) card or other identification card, as necessary, to fit Contractor personnel who require physical access to VA facilities and/or logical access to VA data, information, VA sensitive information, or information technology or VA information systems containing such data or information. Contractor and subcontractor personnel shall prominently display their PIV/identification card on their persons while working at a VA facility and shall present their PIV/identification card for inspection upon request by a VA official. The Contractor must surrender the employee or subcontractor employee's PIV/identification card in accordance with the requirements set forth in Directive/Handbook 0735 when any of the following events occur:

1. When no longer needed for contract performance.
2. Upon completion of the Contractor/subcontractor employee's employment.
3. Upon contract completion or termination.

(f) *Lost/stolen.* Immediately upon detection, the Contractor shall report a lost or stolen PIV/identification card to the Government authorities as identified in Directive/Handbook 0735. Within 48 hours of reporting the lost/stolen PIV/identification card, the Contractor shall submit to the Program Manager an incident report that describes the relevant facts and circumstances regarding the loss/theft. If the loss/theft was reported by the Contractor to the local police, the Contractor shall further submit a copy of the final police report to the Program Manager within 48 hours of the report being made available by the local police department. The Government will not reimburse the Contractor for any costs that result from lost/stolen PIV/identification card(s).

(g) *Regular Reporting.* The Contractor shall submit a status report to PIV Sponsor within 5 working days after the end of each calendar quarter and as requested by the Government in order to initiate contract closeout procedures. The report must provide the status of each contractor/subcontractor employee who is required to have a PIV/identification card during the performance of the contract. The report shall identify the Contractor and the contract number, and list the following status for each contractor/subcontractor employee who holds a PIV/identification card under this contract:

1. Contractor/subcontractor employee name.
2. Name of VA facility where Contractor/subcontractor employee works, if applicable.
3. Date background check submitted for Contractor/subcontractor employee.
4. Date PIV/identification card issued to Contractor/subcontractor employee.
5. Contractor/subcontractor employee's PIV/identification card number, as applicable.

6. Date Contractor/subcontractor employee no longer has need for PIV/identification card.
7. Date Contractor notified VA that PIV/identification card is no longer required.
8. Date Contractor returned PIV/identification card was returned to VA.

(h) *Flow down of clause.* The Contractor shall include the substance of this clause in subcontracts, third-party agreements, and BAA's, in which subcontractors, third-party servicers/employees, and business associates will perform functions where they will have physical access to a VA facility or logical access to VA data, information, VA sensitive information, or information technology or VA information system containing such data or information.

(End of Clause)

## **C.12 VAAR 852.212-71 GRAY MARKET AND COUNTERFEIT ITEMS (FEB 2023)**

(a) No used, refurbished, or remanufactured supplies or equipment/parts shall be provided. This procurement is for new Original Equipment Manufacturer (OEM) items only. No gray market items shall be provided. Gray market items are OEM goods intentionally or unintentionally sold outside an authorized sales territory or sold by non-authorized dealers in an authorized sales territory.

(b) No counterfeit supplies or equipment/ parts shall be provided. Counterfeit items include unlawful or unauthorized reproductions, substitutions, or alterations that have been mismarked, misidentified, or otherwise misrepresented to be an authentic, unmodified item from the original manufacturer, or a source with the express written authority of the original manufacturer or current design activity, including an authorized aftermarket manufacturer. Unlawful or unauthorized substitutions include used items represented as new, or the false identification of grade, serial number, lot number, date code, or performance characteristics.

(c) Vendor shall be an OEM, authorized dealer, authorized distributor, or authorized reseller for the proposed equipment/system, verified by an authorization letter or other documents from the OEM. All software licensing, warranty and service associated with the equipment/system shall be in accordance with the OEM terms and conditions.

(End of Clause)

## **C.13 VAAR 852.232-72 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (NOV 2018)**

(a) *Definitions.* As used in this clause—

(1) *Contract financing payment* has the meaning given in FAR 32.001;

(2) *Designated agency office* means the office designated by the purchase order, agreement, or contract to first receive and review invoices. This office can be contractually designated as the receiving entity. This office may be different from the office issuing the payment;

(3) *Electronic form* means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests;

(4) *Invoice payment* has the meaning given in FAR 32.001; and

(5) *Payment request* means any request for contract financing payment or invoice payment submitted by the contractor under this contract.

(b) *Electronic payment requests*. Except as provided in paragraph (e) of this clause, the contractor shall submit payment requests in electronic form. Purchases paid with a Government-wide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) *Data transmission*. A contractor must ensure that the data transmission method and format are through one of the following:

(1) VA's Electronic Invoice Presentment and Payment System at the current website address provided in the contract.

(2) Any system that conforms to the X12 electronic data interchange (EDI) formats established by the Accredited Standards Center (ASC) and chartered by the American National Standards Institute (ANSI).

(d) *Invoice requirements*. Invoices shall comply with FAR 32.905.

(e) *Exceptions*. If, based on one of the circumstances in this paragraph (e), the Contracting Officer directs that payment requests be made by mail, the Contractor shall submit payment requests by mail through the United States Postal Service to the designated agency office. Submission of payment requests by mail may be required for—

(1) Awards made to foreign vendors for work performed outside the United States;

(2) Classified contracts or purchases when electronic submission and processing of payment requests could compromise the safeguarding of classified or privacy information;

(3) Contracts awarded by contracting officers in the conduct of emergency operations, such as responses to national emergencies;

(4) Solicitations or contracts in which the designated agency office is a VA entity other than the VA Financial Services Center in Austin, Texas; or

(5) Solicitations or contracts in which the VA designated agency office does not have electronic invoicing capability as described above.

(End of Clause)

## C.14 VAAR 852.239-70 SECURITY REQUIREMENTS FOR INFORMATION TECHNOLOGY RESOURCES (FEB 2023)

(a) *Definitions.* As used in this clause— *Information technology* has the same meaning in FAR 2.101 and also means Information and Communication Technology (ICT).

*Information system security plan* means a formal document that provides an overview of the security requirements for an information system and describes the security controls in place or planned for meeting those requirements.

(b) *Responsibilities.* The Contractor shall be responsible for information system security for all systems connected to a Department of Veterans Affairs (VA) network or operated by the Contractor for VA, regardless of location. This clause is applicable to all or any part of the contract that includes information technology resources or services in which the Contractor has physical or other system access to VA information that directly supports the mission of VA. Examples of tasks that require security provisions include—

- (1) Hosting of VA e-Government sites or other information technology operations;
- (2) Acquisition, transmission, or analysis of data owned by VA with significant replacement cost should the contractor's copy be corrupted; and
- (3) Access to VA general support systems/ major applications at a level beyond that granted the general public, e.g., bypassing a firewall.

(c) *Information system security plan.* The Contractor shall develop, provide, implement, and maintain an Information System Security Plan. VA information systems must have an information system security plan that provides an overview of the security requirements for the system and describes the security controls in place or the plan for meeting those requirements. This plan shall describe the processes and procedures that the Contractor will follow to ensure appropriate security of information system resources developed, processed, or used under this contract. The information system security plan should include implementation status, responsible entities, resources, and estimated completion dates. Information system security plans may also include, but are not limited to, a compiled list of system characteristics, and key security-related documents such as a risk assessment, PIA, system interconnection agreements, contingency plan, security configurations, configuration management plan, and incident response plan. The plan shall address the specific contract requirements regarding information systems related support or services included in the contract, to include the performance work statement (PWS) or statement of work (SOW). The Contractor's Information System Security Plan shall comply with applicable Federal Laws that include, but are not limited to, 40 U.S.C. 11331, the Federal Information Security Modernization Act (FISMA) of 2014 and the E-Government Act of 2002. The plan shall meet information system security requirements in accordance with Federal and VA policies and procedures, and as amended during the term of this contract, and include, but are not limited to the following.

- (1) OMB Circular A–130, Managing Information as a Strategic Resource;
- (2) National Institute of Standards and Technology (NIST) Guidelines; and

(3) VA Directive 6500, VA Cybersecurity Program, and the directives and handbooks in the VA 6500 series related to VA information (including VA sensitive information and sensitive personal information and information systems security and privacy), as well as those set forth in the contract specifications, statement of work, or performance work statement. These include, but are not limited to, VA Handbook 6500.6, Contract Security; and VA Directive and Handbook 0710, Personnel Security and Suitability Program, which establishes VA's procedures, responsibilities, and processes for complying with current Federal law, Executive Orders, policies, regulations, standards and guidance for protecting VA information, information systems (see 802.101, Definitions) security and privacy, and adhering to personnel security requirements when accessing VA information or information systems.

(d) *Submittal of plan.* Within 90 days after contract award, the Contractor shall submit the Information System Security Plan to the Contracting Officer for review and approval.

(e) *Security accreditation.* As required by current VA policy, the Contractor shall submit written proof of information system security accreditation to the Contracting Officer for non-VA owned systems. Such written proof may be furnished either by the Contractor or by a third party. Accreditation shall be in accordance with VA policy available from the Contracting Officer upon request. The Contractor shall submit for acceptance by the Contracting Officer along with this accreditation a final information system security plan, such as a risk assessment, security test and evaluation, and disaster recovery plan/continuity of operations plan. The accreditation and the final information system security plan and the accompanying documents, such as a risk assessment, security test and evaluation, and disaster recovery/continuity of operations plan.

(f) *Annual validation.* On an annual basis, the Contractor shall verify in writing to the Contracting Officer that the Information System Security Plan remains valid.

(g) *Banners.* The Contractor shall ensure that the official VA banners are displayed on all VA systems (both public and private) operated by the Contractor that contain Privacy Act information before allowing anyone access to the system. The Office of Information Technology will make official VA banners available to the Contractor.

(h) *Screening and access.* The Contractor shall screen all personnel requiring privileged access or limited privileged access to systems operated by the Contractor for VA or interconnected to a VA network in accordance with VA Directives and Handbooks referenced in paragraph (c) of this clause.

(i) *Training.* The Contractor shall ensure that its employees performing services under this contract complete VA security awareness training on an annual basis. This includes signing an acknowledgment that they have read, understand, and agree to abide by the VA Information Security Rules of Behavior (VA National Rules of Behavior) as required by 38 U.S.C. 5723; FAR 39.105, Privacy; clause 852.204–71, Information and Information Systems Security, and this clause on an annual basis.

(j) *Government access.* The Contractor shall provide the Government access to the Contractor's and subcontractors' facilities, installations, operations, documentation, databases, and personnel used in performance of the contract. The Contractor shall provide access to enable a program of information system inspection (to include vulnerability testing), investigation and audit (to safeguard against threats and hazards to the integrity, availability and

confidentiality of VA data or to the function of information systems operated on behalf of VA), and to preserve evidence of computer crime.

(k) *Notification of termination of employees.* The Contractor shall immediately notify the Contracting Officer when an employee who has access to VA information systems or data terminates employment.

(l) *Subcontractor flow down requirement.* The Contractor shall incorporate and flow down the substance of this clause to all subcontracts that meet the conditions in paragraph (a) of this clause.

(End of Clause)

## **C.15 VAAR 852.239-76 INFORMATION AND COMMUNICATION TECHNOLOGY ACCESSIBILITY (FEB 2023)**

(a) All information and communication technology (ICT) (formerly referred to as electronic and information technology (EIT)) supplies, information, documentation and services support developed, acquired, maintained or delivered under this contract or order must comply with the “Architectural and Transportation Barriers Compliance Board Electronic and Information Technology (EIT) Accessibility Standards” (see 36 CFR part 1194). Information about Section 508 is available at <http://www.section508.va.gov/>.

(b) The Section 508 accessibility standards applicable to this contract or order are identified in the specification, statement of work, or performance work statement. If it is determined by the Government that ICT supplies and services provided by the Contractor do not conform to the described accessibility standards in the contract, remediation of the supplies or services to the level of conformance specified in the contract will be the responsibility of the Contractor at its own expense.

(c) The Section 508 accessibility standards applicable to this contract are:

(d) In the event of a modification(s) to this contract or order, which adds new EIT supplies or services or revises the type of, or specifications for, supplies or services, the Contracting Officer may require that the Contractor submit a completed VA Section 508 Checklist and any other additional information necessary to assist the Government in determining that the ICT supplies or services conform to Section 508 accessibility standards. If it is determined by the Government that ICT supplies and services provided by the Contractor do not conform to the described accessibility standards in the contract, remediation of the supplies or services to the level of conformance specified in the contract will be the responsibility of the Contractor at its own expense.

(e) If this is an Indefinite-Delivery type contract, a Blanket Purchase Agreement or a Basic Ordering Agreement, the task/delivery order requests that include ICT supplies or services will define the specifications and accessibility standards for the order. In those cases, the Contractor may be required to provide a completed VA Section 508 Checklist and any other additional information necessary to assist the Government in determining that the ICT supplies or services conform to Section 508 accessibility standards. If it is determined by the Government that ICT supplies and services provided by the Contractor do not conform to the described accessibility



standards in the provided documentation, remediation of the supplies or services to the level of conformance specified in the contract will be the responsibility of the Contractor at its own expense.

(End of Clause)

#### **C.16 VAAR 852.242-71 ADMINISTRATIVE CONTRACTING OFFICER (OCT 2020)**

The Contracting Officer reserves the right to designate an Administrative Contracting Officer (ACO) for the purpose of performing certain tasks/duties in the administration of the contract. Such designation will be in writing through an ACO Letter of Delegation and will identify the responsibilities and limitations of the ACO. A copy of the ACO Letter of Delegation will be furnished to the Contractor.

(End of Clause)

#### **C.17 VAAR 852.246-71 REJECTED GOODS (OCT 2018)**

(a) *Supplies and equipment.* Rejected goods will be held subject to Contractor's order for not more than 15 days, after which the rejected merchandise will be returned to the Contractor's address at the Contractor's risk and expense. Expenses incident to the examination and testing of materials or supplies that have been rejected will be charged to the Contractor.

(b) *Perishable supplies.* The Contractor shall remove rejected perishable supplies within 48 hours after notice of rejection. Supplies determined to be unfit for human consumption will not be removed without permission of the local health authorities. Supplies not removed within the allowed time may be destroyed. The Department of Veterans Affairs will not be responsible for, nor pay for, products rejected. The Contractor will be liable for costs incident to examination of rejected products.

(End of Clause)

(End of Addendum to 52.212-4)

## **SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS**

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## SECTION E - SOLICITATION PROVISIONS

### E.1 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>  
<https://www.va.gov/oal/library/vaar/>

(End of Provision)

| <u>FAR<br/>Number</u> | <u>Title</u>                                                                                                                   | <u>Date</u> |
|-----------------------|--------------------------------------------------------------------------------------------------------------------------------|-------------|
| 52.203-18             | PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS—REPRESENTATION | JAN 2017    |
| 52.204-7              | SYSTEM FOR AWARD MANAGEMENT—REGISTRATION (DEVIATION)                                                                           | NOV 2025    |
| 52.212-1              | INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES                                                           | SEP 2023    |
| 52.219-1              | SMALL BUSINESS PROGRAM REPRESENTATIONS (DEVIATION)                                                                             | NOV 2025    |
| 52.229-11             | TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION                                                                  | JUN 2020    |

### E.2 ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

#### **(a) North American Industry Classification System (NAICS) Code**

In accordance with FAR 52.212-1(a), the North American Industry Classification System (NAICS) code assigned to this acquisition is 325413, In-Vitro Diagnostic Substance Manufacturing. The small business size standard is 1,250 employees. This NAICS code and size standard are consistent with the market research for this requirement.

#### **(b) Submission of Quotations**

In accordance with FAR 52.212-1(b) and RFO FAR 12.201-1, offerors shall submit quotations electronically via e-mail to the Contracting Officer at [ognian.ivanov@va.gov](mailto:ognian.ivanov@va.gov), no later than 05/15/2026, 10 am Central Time. Quotations received after the exact time specified for receipt may not be considered.

Each quotation shall include the solicitation number on the subject line of the e-mail and on all quotation documents. The offeror shall submit separate electronic files for the technical quotation, price quotation, and representations/certifications or other administrative submissions required by this solicitation.

At a minimum, the quotation shall include the following administrative information:

Offeror legal name;

Unique Entity Identifier (UEI);

CAGE code;

Remittance address;

Name, title, telephone number, and e-mail address of the authorized point of contact; and

A statement that the quotation is valid for at least 60 calendar days from the date specified for receipt of quotations.

**(c) Technical Quotation**

In accordance with FAR 52.212-1(b), FAR 52.212-2, and RFO FAR 12.203(a)(1), the technical quotation shall clearly demonstrate the offeror's ability to meet all minimum requirements of the solicitation and Statement of Work. Technical quotations shall be evaluated on an acceptable/unacceptable basis only.

At a minimum, the technical quotation shall include:

Manufacturer name, model number, and configuration of the proposed non-Gyn specimen liquid-based cytology processor;

Current descriptive literature, product brochures, specifications, or manufacturer technical data sufficient to demonstrate that the proposed processor meets the minimum performance characteristics identified in the solicitation;

A description of all reagents and consumables to be provided, including catalog numbers or equivalent identifiers, and confirmation that the reagents and consumables are fully compatible with the proposed processor;

A description of installation services, start-up support, and operator training to be provided under the contract;

A description of the preventive maintenance and corrective maintenance approach, including emergency response times, annual preventive maintenance, calibration, software updates, service documentation, and availability of loaner equipment when the primary instrument is out of service for more than one business day;

Documentation demonstrating that the proposed system and reagents comply with applicable FDA requirements and are suitable for use in a CLIA-certified and CAP-accredited cytology laboratory environment; and

If the proposed instrument will connect to VA networks or interface with VA information systems, a description of the connectivity/interface requirements and the offeror's ability to comply with applicable VA information security requirements.

Quotations that fail to provide sufficient technical information to demonstrate compliance with the minimum requirements may be determined technically unacceptable.

**(d) Price Quotation**

In accordance with FAR 52.212-1 and RFO FAR 12.209, the offeror shall submit a complete price quotation using the schedule included in the solicitation. The price quotation shall include all prices necessary to perform the contract requirements, including the base period and all option periods, if applicable.

At a minimum, the price quotation shall include:

The offered firm-fixed price per test for the base period and each option period;

Any one-time or fixed charges, such as installation, training, or other separately priced items, if permitted by the solicitation; and

Any other pricing information required by the price schedule.

All prices shall be quoted in U.S. dollars and shall include all costs necessary to perform the requirement unless the solicitation expressly provides otherwise.

**(e) Representations, Certifications, and Other Required Information**

In accordance with FAR 52.204-7, offerors shall be actively registered in the System for Award Management (SAM) at the time a quotation is submitted and at the time of award. In addition, offerors shall complete and submit all solicitation provisions requiring offeror completion, including any provisions incorporated by reference in accordance with FAR 52.252-1 and VAAR 852.252-70, if applicable.

At a minimum, the offeror shall complete and submit the following, as applicable to this solicitation:

FAR 52.219-1, Small Business Program Representations;

FAR 52.225-2, Buy American Certificate;

FAR 52.225-18, Place of Manufacture; and

Any other certification, representation, or signed submission expressly required elsewhere in this solicitation.

**(f) Questions Regarding the Solicitation**

Questions concerning this solicitation shall be submitted in writing via e-mail to the Contracting Officer at [ognian.ivanov@va.gov](mailto:ognian.ivanov@va.gov), no later than 05/13/2026. In accordance with FAR 15.201 and applicable RFO FAR commercial solicitation practices, the Government may respond to

questions by amendment to the solicitation. Questions received after the deadline may not be answered.

**(g) Basis for Award and Initial Quotations**

In accordance with FAR 52.212-2, RFO FAR 12.203, and FAR 15.101-2, award is intended to be made on a Lowest Price Technically Acceptable basis. Offerors are advised to submit quotations containing their best terms from both a technical and price standpoint in their initial submission. The Government intends to evaluate quotations and make award without discussions, but reserves the right to conduct discussions if the Contracting Officer determines that discussions are necessary and in the best interest of the Government.

**(h) Brand Name or Equal Information (If Applicable)**

If this solicitation is issued on a brand name or equal basis, the offeror proposing an equal product shall submit sufficient descriptive material to permit the Government to determine whether the offered product meets all salient characteristics identified in the solicitation. Failure to provide adequate descriptive material may result in the quotation being determined technically unacceptable.

**(i) Responsibility**

In accordance with FAR Subpart 9.1 and RFO FAR 12.201-1, the apparent successful offeror must be determined responsible prior to award.

**(j) Debriefings**

Debriefings shall be provided in accordance with FAR 52.212-1, as revised by the applicable deviation, and other applicable law and regulation. Any debriefing request shall be submitted in accordance with the instructions stated in the solicitation or notice of award.

**(End of Provision)**

## **E.3 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2021)**

**(a) Basis for Award – Lowest Price Technically Acceptable (LPTA)**

In accordance with RFO FAR 12.203 (Evaluation) and RFO FAR 12.201-1 (Simplified Procedures), this acquisition is conducted under the simplified commercial procedures authorized for acquisitions under \$9,000,000. In accordance with RFO FAR 12.203(a), evaluation factors for this acquisition need not be more detailed than technical (capability of the products or services offered to meet the agency's needs), price, and past performance. The Government has elected to use the Lowest Price Technically Acceptable (LPTA) source selection process in accordance with FAR 15.101-2, Lowest Price Technically Acceptable Source Selection Process, which is appropriate because the Government can comprehensively and clearly describe the minimum requirements, would realize no or minimal value from a

proposal that exceeds those minimum technical requirements, and expects that the lowest evaluated price will reflect the best value to the Government. In accordance with FAR 15.101-2(b)(2), tradeoffs between price and non-price factors are not permitted.

### **(b) Evaluation Factors**

The following factors shall be used to evaluate quotations:

- (1) Technical Acceptability
- (2) Past Performance (if evaluated; see paragraph (b)(2) below)
- (3) Price

In accordance with FAR 15.304 and RFO FAR 12.203(a), Technical Acceptability and Past Performance (when evaluated) will be evaluated on a pass/fail basis only to determine whether the quotation meets the Government's minimum requirements. In accordance with FAR 15.101-2(b)(3), quotations are evaluated for acceptability but are not ranked using non-price factors. Award will be made to the responsible offeror whose quotation is technically acceptable (and has acceptable past performance, if evaluated) and offers the lowest total evaluated price.

### **(b)(1) Technical Acceptability**

In accordance with RFO FAR 12.203(a)(1) and FAR 15.101-2(b)(1), technical acceptability will be evaluated on a pass/fail basis. The Government will evaluate whether the quoted products and services meet all minimum requirements identified in the Statement of Work/Specifications. At a minimum, the Government will evaluate whether the offeror:

- Proposes and provides a non-Gyn specimen liquid-based cytology processor meeting the required performance characteristics identified in the Statement of Work (e.g., ThinPrep-type cytology processor or an "equal" meeting all salient characteristics, if brand name or equal is specified in the solicitation in accordance with RFO FAR Part 11);
- Furnishes all reagents and consumables compatible with the proposed processor necessary to perform liquid-based preparation of non-Gyn cytology specimens at the estimated annual test volumes identified in the schedule for the base and all option periods;
- Provides full-service maintenance and support in accordance with the solicitation, including preventive maintenance, corrective maintenance, emergency service response within the timeframes specified, annual preventive maintenance/calibration/software updates, documentation of all service events, and provision of a loaner instrument when the primary instrument will be out of service for more than one business day; and
- Demonstrates the ability to comply with all applicable regulatory and safety requirements, including: FDA clearance/approval for the device and reagents; suitability for use in CLIA-certified and CAP-accredited cytology laboratories; OSHA requirements for handling hazardous laboratory chemicals; and VA information security requirements applicable when the instrument connects to VA networks or VA information systems, as required by the VAAR and applicable VA security policies.

In accordance with FAR 15.101-2(b)(1), quotations that fail to meet any mandatory requirement will be rated technically unacceptable and will not be considered for award.

### **(b)(2) Past Performance**

In accordance with FAR 15.101-2(b)(1) and FAR 15.304(c)(3)(iii), the Contracting Officer has determined that past performance [INSERT: "will" OR "will not"] be evaluated as a separate factor for this acquisition.

If past performance IS evaluated:

In accordance with FAR 15.305(a)(2) and FAR 15.101-2(b)(1), past performance will be evaluated on a pass/fail basis. The comparative assessment at FAR 15.305(a)(2)(i) does not apply under an LPTA evaluation in accordance with FAR 15.101-2(b)(1). The Government may consider information from any sources available, including CPARS and other Federal agency or commercial customer references. An offeror with a record of acceptable performance on similar laboratory equipment and reagent-rental or lease-consumable contracts will be rated Acceptable. An offeror without relevant past performance will be rated Acceptable. In accordance with FAR 15.101-2(b)(1), if the Contracting Officer determines that a small business concern's past performance is unacceptable, the matter will be referred to the Small Business Administration for a Certificate of Competency determination in accordance with FAR Subpart 19.6. No tradeoff will be made between past performance and price; only quotations rated Acceptable will be eligible for award.

If past performance is NOT evaluated:

In accordance with FAR 15.101-2(b)(1) and FAR 15.304(c)(3)(iii), past performance has not been included as a separate evaluation factor. The Contracting Officer has documented the contract file accordingly. Responsibility determinations will be made in accordance with FAR Subpart 9.1.

### **(b)(3) Price**

In accordance with RFO FAR 12.203(a)(2), RFO FAR 12.209, and FAR 15.404-1(b), price will be evaluated for fairness and reasonableness. The total evaluated price will be determined based on the pricing structure in the schedule — specifically, the estimated annual test volumes multiplied by the offered price per test for the base period and each option period, plus any applicable fixed charges such as installation or training fees, as identified in the solicitation. In accordance with RFO FAR 12.209, the Contracting Officer may use one or more of the following price analysis techniques to determine price reasonableness:

- Comparison of quoted prices received in response to the solicitation;
- Comparison to recent Government prices paid for the same or similar non-Gyn cytology systems and reagent-rental arrangements;
- Comparison to published catalog or market prices for comparable commercial liquid-based cytology platforms; and
- Comparison to the independent Government estimate and the market research documented for this requirement.

In accordance with FAR 15.101-2(b)(2), award will be made to the lowest-priced quotation that is technically acceptable (and has acceptable past performance, if evaluated).

### **(c) Options**

In accordance with RFO FAR 17.203 and FAR 17.206, the Government will evaluate quotations for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that a quotation is unacceptable if the option prices are significantly unbalanced in accordance with FAR 15.404-1(g). Evaluation of options shall not obligate the Government to exercise any option.

### **(d) Responsibility**



In accordance with FAR Subpart 9.1 and RFO FAR 12.201-1, award will not be made unless the Contracting Officer makes an affirmative determination of responsibility for the apparent successful offeror.

**(e) Award Without Discussions**

The Government intends to evaluate quotations and make award without discussions in accordance with RFO FAR 12.201-1. Each initial quotation should therefore contain the offeror's best terms from a technical and price standpoint. The Government reserves the right to conduct discussions if the Contracting Officer determines that discussions are in the Government's best interest. A written notice of award or acceptance of a quotation, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the quotation, shall result in a binding contract without further action by either party.

(End of Provision)

**E.4 52.225-2 BUY AMERICAN CERTIFICATE (OCT 2022)**

(a)(1) The Offeror certifies that each end product, except those listed in paragraph (b) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c) of this provision contains a critical component.

(2) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

(3) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(4) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," and "foreign end product" are defined in the clause of this solicitation entitled "Buy American—Supplies."

(b) Foreign End Products:

| Line Item No. | Country of origin | Exceeds 55% domestic content (yes/no) |
|---------------|-------------------|---------------------------------------|
|               |                   |                                       |
|               |                   |                                       |
|               |                   |                                       |

*[List as necessary]*

(c) Domestic end products containing a critical component:

| Line Item No. |
|---------------|
|---------------|

|  |
|--|
|  |
|  |
|  |

*[List as necessary]*

(d) The Government will evaluate offers in accordance with the policies and procedures of part 25 of the Federal Acquisition Regulation.

(End of Provision)

#### **E.5 52.252-5 AUTHORIZED DEVIATIONS IN PROVISIONS (NOV 2020)**

(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of “(DEVIATION)” after the date of the provision.

(b) The use in this solicitation of any VAAR Acquisition Regulation (48 CFR Chapter FEDERAL ACQUISITION REGULATION (48 CFR Chapter 1)) provision with an authorized deviation is indicated by the addition of “(DEVIATION)” after the name of the regulation.

(End of Provision)

#### **E.6 VAAR 852.215-72 NOTICE OF INTENT TO RE-SOLICIT (OCT 2019)**

This solicitation provides offerors fewer than 30 days to submit proposals. In the event that only one offer is received in response to this solicitation, the Contracting Officer may cancel the solicitation and resolicit for an additional period of at least 30 days in accordance with 815.370–2.

(End of Provision)

#### **E.7 VAAR 852.252-70 SOLICITATION PROVISIONS OR CLAUSES INCORPORATED BY REFERENCE (JAN 2008)**

The following provisions or clauses incorporated by reference in this solicitation must be completed by the offeror or prospective contractor and submitted with the quotation or offer. Copies of these provisions or clauses are available on the Internet at the Web sites provided in the provision at FAR 52.252-1, Solicitation Provisions Incorporated by Reference, or the clause at FAR 52.252-2, Clauses Incorporated by Reference. Copies may also be obtained from the contracting officer.

[Contracting officer shall list all FAR and 48 CFR Chapter 8 (VAAR) provisions and clauses incorporated by reference that must be completed by the offeror or prospective contractor and submitted with the quotation or offer.]

(End of Provision)

(End of Addendum to 52.212-1)